NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

CA (CAA) 06/2021

Coram:
Hon'ble Shri H. V. Subba Rao, Member (J): Hearing through
Hon'ble Shri Prasanta Kumar Mohanty, Member (T): Video Conference

ATTENDANCE-CUM- ORDER SHEET OF THE HEARING OF GUWAHATI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 22.02.2021

Name of the Company:	Regional Director, NER, Guwahati V/s Moondhara Traders Pvt. Ltd. & Others
Section of the Companies Act:	Under Section 230 & 232(5) of Companies Act, 2013

S. NO. NAME (CAPITAL LETTERS)	DESIGNATION	REPRESENTATION	SIGNATURE
1. MOHD. SHAKEEL	Dy. Director, NER	Petitioner	Present in Video
2. MR. B. SHARMA	Advocate	Respondents	Conference

O R D E R
Date of Order: 22.02.2021

The matter is taken up for hearing through Video Conferencing. Md. Shakeel, Deputy Director, NER, MCA is present on behalf of the Petitioner. He has submitted that the Transferee Company has failed to disclose the gross turnover of business of trading. He has stated that the proposed scheme for merger/amalgamation has been examined in the office. During examination certain objection/irregularities/violations have been noticed by the Applicant and communicated to the transferee company. The company was requested to explain maintainability of the petition u/s 233 of the Companies Act, 2013 pursuant to provision of section of the Act, as regards turnover of the company. But Transferee Company's explanation on the gross turnover as disclosed in the profit & loss Account was not found to be satisfactory. It is the case of the Applicant that the transferee company failed to disclose the gross turnover of its business of trading on

F & O segment as the transferee company had booked only the profit or loss arising on account of its F & O trading directly as revenue from operations. As a result, the gross turnover was suppressed thereby transferee company claimed to be a small company. Since the accounting treatment of F & O turnover in its books was not proper, the applicant is of the view that the present scheme is not maintainable/ admissible under section 233 of the Companies Act, 2013.

2. In the facts and circumstances stated above, the Petitioner has submitted as under:

> "(i) That this Applicant objects to the scheme to the extent that the transferee company has been carrying on a business which was not authorised by its Memorandum of Association and thus the business of the company is ultravirus its main objects which is against public interest.
>
> (ii) That the transferee company failed to disclose its true gross turnover in its financial statements and in view thereof, this Hon'ble Tribunal may pass such or other order or orders or directions as this Hon'ble Tribunal may deem fit and proper."

3. On the other hand, the Learned Counsel for the Respondents Mr. B. Sharma has informed that he was not aware of this petition coming up for hearing today Hence he has sought ten(10) days' time to file reply to this petition. Time is granted.

4. However, it is found that Amalgamation Petition has not been filed by the Respondent before this Bench. In view of this the Respondents are directed to clarify the points raised by the Petitioner within 10(ten) days to the Director NER. The Petitioner is also directed to submit its rejoinder if any on receipt of the reply from the Respondent before 17.03.2021.

5. List the matter on 22.03.2021

Sd/-	**Sd/-**
(**Prasanta Kumar Mohanty)**	**(H. V. Subba Rao)**
Member (Technical)	**Member (Judicial)**

/Deka-22.02.2021//